

CIC AND SIC

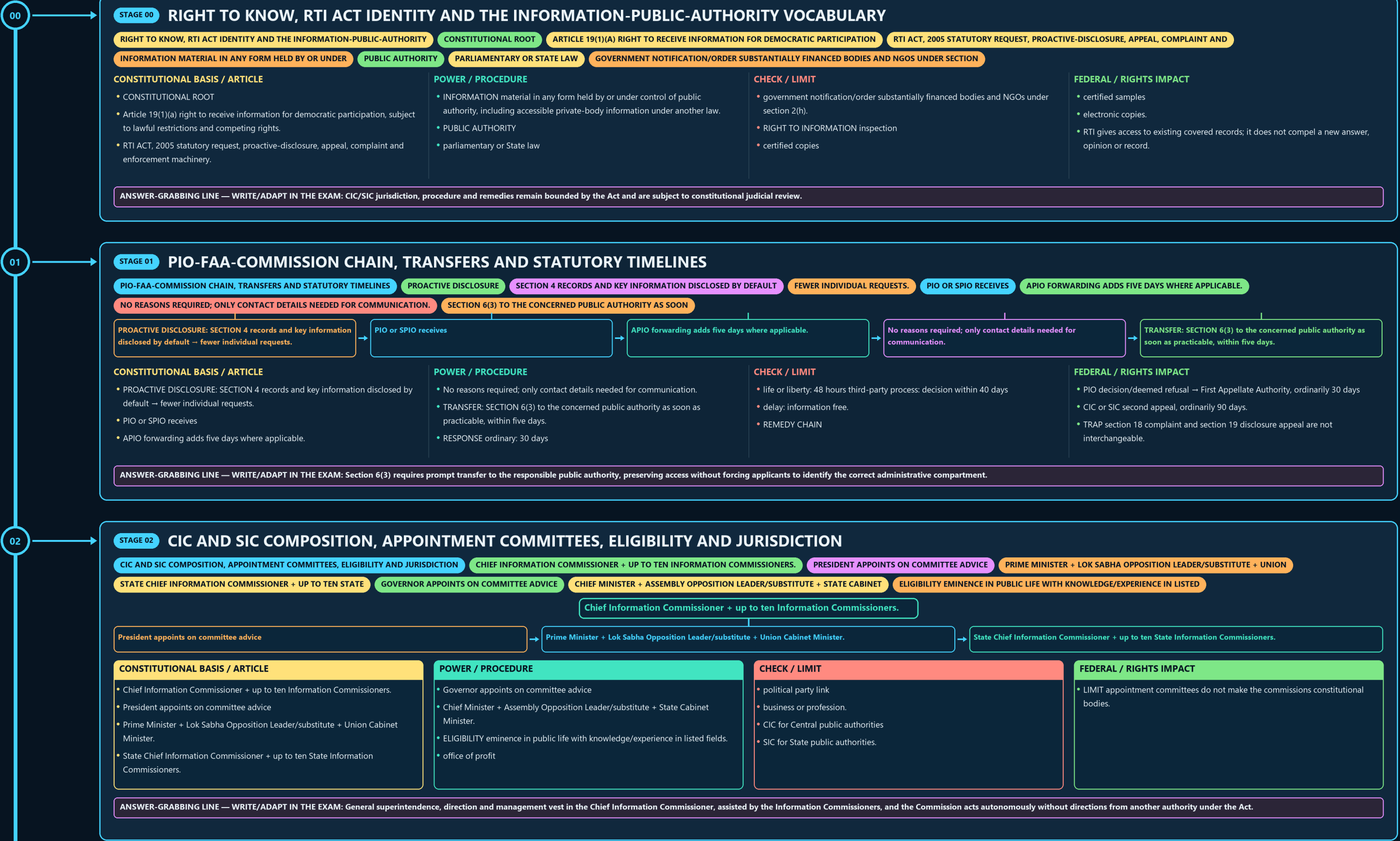
RIGHT TO KNOW, RTI → PIO-FAA-COMMISSION CHAIN, TRANSFERS AND → CIC AND SIC COMPOSITION → 2019 AMENDMENT, CURRENT RULES → SECTIONS 18-20: COMPLAINT, APPEAL → EXEMPTIONS, PUBLIC INTEREST, SEVERABILITY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



CIC AND SIC COMPOSITION, APPOINTMENT COMMITTEES, ELIGIBILITY AND JURISDICTION

CIC AND SIC COMPOSITION, APPOINTMENT COMMITTEES, ELIGIBILITY AND JURISDICTION

CHIEF INFORMATION COMMISSIONER + UP TO TEN INFORMATION COMMISSIONERS.

PRESIDENT APPOINTS ON COMMITTEE ADVICE

PRIME MINISTER + LOK SABHA OPPOSITION LEADER/SUBSTITUTE + UNION

STATE CHIEF INFORMATION COMMISSIONER + UP TO TEN STATE

GOVERNOR APPOINTS ON COMMITTEE ADVICE

CHIEF MINISTER + ASSEMBLY OPPOSITION LEADER/SUBSTITUTE + STATE CABINET

ELIGIBILITY EMINENCE IN PUBLIC LIFE WITH KNOWLEDGE/EXPERIENCE IN LISTED

Chief Information Commissioner + up to ten Information Commissioners.

President appoints on committee advice

Prime Minister + Lok Sabha Opposition Leader/substitute + Union Cabinet Minister.

State Chief Information Commissioner + up to ten State Information Commissioners.

CONSTITUTIONAL BASIS / ARTICLE

- Chief Information Commissioner + up to ten Information Commissioners.
- President appoints on committee advice
- Prime Minister + Lok Sabha Opposition Leader/substitute + Union Cabinet Minister.
- State Chief Information Commissioner + up to ten State Information Commissioners.

POWER / PROCEDURE

- Governor appoints on committee advice
- Chief Minister + Assembly Opposition Leader/substitute + State Cabinet Minister.
- ELIGIBILITY eminence in public life with knowledge/experience in listed fields.
- office of profit

CHECK / LIMIT

- political party link
- business or profession.
- CIC for Central public authorities
- SIC for State public authorities.

FEDERAL / RIGHTS IMPACT

- LIMIT appointment committees do not make the commissions constitutional bodies.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: General superintendence, direction and management vest in the Chief Information Commissioner, assisted by the Information Commissioners, and the Commission acts autonomously without directions from another authority under the Act.

03

STAGE 03 2019 AMENDMENT, CURRENT RULES, TENURE AND PROTECTED REMOVAL

2019 AMENDMENT, CURRENT RULES, TENURE AND PROTECTED REMOVAL

2019 AMENDMENT REMOVED ACT-FIXED FIVE-YEAR TERM AND ELECTION-COMMISSION-LINKED CONDITIONS

CENTRAL GOVERNMENT PRESCRIBES TERM, PAY AND SERVICE CONDITIONS BY

2019 RULES ORDINARY TERM

THREE YEARS

AGE CEILING

FIXED CURRENT PAY VARIES BY OFFICE UNDER THE RULES.

REAPPOINTMENT SAME OFFICE

2019 AMENDMENT removed Act-fixed five-year term and Election-Commission-linked conditions

Central Government prescribes term, pay and service conditions by rules.

2019 RULES ordinary term: three years

age ceiling: 65.

fixed current pay varies by office under the Rules.

CONSTITUTIONAL BASIS / ARTICLE

- 2019 AMENDMENT removed Act-fixed five-year term and Election-Commission-linked conditions
- Central Government prescribes term, pay and service conditions by rules.
- 2019 RULES ordinary term: three years
- age ceiling: 65.

POWER / PROCEDURE

- fixed current pay varies by office under the Rules.
- REAPPOINTMENT same office: barred; an Information Commissioner may become Chief, subject to aggregate statutory maximum.
- REMOVAL FOR PROVED MISBEHAVIOUR OR INCAPACITY
- President for CIC officers

CHECK / LIMIT

- Governor for SIC officers after Supreme Court inquiry.
- DIRECT GROUNDS insolvency
- conviction involving moral turpitude
- outside paid employment infirmity

FEDERAL / RIGHTS IMPACT

- prejudicial financial or other interest.
- AUTONOMY CONCERN executive rule-making now controls core conditions of adjudicators reviewing that executive.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The independence debate is not merely “three versus five.” The deeper change is the movement of a safeguard from parliamentary text to executive rule-making by the government whose records the Commissions review.

04

STAGE 04 SECTIONS 18-20: COMPLAINT, APPEAL, INQUIRY, ORDERS, COMPENSATION AND PENALTY

SECTIONS 18-20

COMPLAINT, APPEAL, INQUIRY, ORDERS, COMPENSATION AND PENALTY

SECTION 18 COMPLAINT INABILITY TO FILE

NO REPLY

UNREASONABLE FEE INCOMPLETE, MISLEADING OR FALSE INFORMATION

INQUIRY ON REASONABLE GROUNDS.

INQUIRY POWERS CIVIL-COURT POWERS + DIRECT INSPECTION OF COVERED

NO RECORD MAY BE WITHHELD FROM COMMISSION ON A

SECTION 18 COMPLAINT inability to file

no reply

unreasonable fee incomplete, misleading or false information → inquiry on reasonable grounds.

INQUIRY POWERS civil-court powers + direct inspection of covered records

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 18 COMPLAINT inability to file
- no reply
- unreasonable fee incomplete, misleading or false information → inquiry on reasonable grounds.

POWER / PROCEDURE

- INQUIRY POWERS civil-court powers + direct inspection of covered records
- no record may be withheld from Commission on a statutory exemption claim.
- SECTION 19 SECOND APPEAL

CHECK / LIMIT

- PIO bears burden to justify denial.
- Commission may order disclosure and systemic compliance under section 19(8).
- Orders bind within the statutory field, subject to constitutional review.

FEDERAL / RIGHTS IMPACT

- REMEDIES compensation to complainant/appellant section 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000 disciplinary recommendation.
- DUE PROCESS reasonable opportunity and statutory conditions precede penalty.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 18 gives Information Commissions civil-court evidence powers during inquiry, but those powers do not convert complaint jurisdiction into appellate authority.

05

STAGE 05 EXEMPTIONS, PUBLIC INTEREST, SEVERABILITY, THIRD PARTIES AND SECURITY BODIES

EXEMPTIONS, PUBLIC INTEREST, SEVERABILITY, THIRD PARTIES AND SECURITY BODIES

SECTION 8 SPECIFIED PROTECTED INTERESTS; CURRENT SECTION 8(1)(J) COVERS

SECTION 8(2) GENERAL PUBLIC-INTEREST OVERRIDE REMAINS.

SECTION 9 COPYRIGHT-BASED REFUSAL WHERE ACCESS WOULD INFRINGE COPYRIGHT

SECTION 10 SEVER EXEMPT PORTION

DISCLOSE REASONABLY SEPARABLE REMAINDER WITH REASONS.

SECTION 11 THIRD-PARTY CONSULTATION PROCEDURE, NOT AN INDEPENDENT EXEMPTION.

SECTION 24 LISTED INTELLIGENCE/SECURITY ORGANISATIONS EXCLUDED, EXCEPT CORRUPTION ALLEGATIONS

no reply

→

unreasonable fee incomplete, misleading or false information → inquiry on reasonable grounds.

→

INQUIRY POWERS civil-court powers + direct inspection of covered records

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 18 COMPLAINT inability to file
- no reply
- unreasonable fee incomplete, misleading or false information → inquiry on reasonable grounds.

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→

Section 8(2) general public-interest override remains.

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SECTION 10 sever exempt portion → disclose reasonably separable remainder with reasons.

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SECTION 11 third-party consultation procedure, not an independent exemption.

CONSTITUTIONAL BASIS / ARTICLE

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- Section 8(2) general public-interest override remains.

POWER / PROCEDURE

- SECTION 9 copyright-based refusal where access would infringe copyright of a person other than State.
- SECTION 10 sever exempt portion → disclose reasonably separable remainder with reasons.

CHECK / LIMIT

- SECTION 11 third-party consultation procedure, not an independent exemption.
- SECTION 24 listed intelligence/security organisations excluded, except corruption allegations and human-rights information.

FEDERAL / RIGHTS IMPACT

- Human-rights disclosure requires Commission approval and uses a 45-day period.
- PRIVACY CONTROL current statute → harm and public-interest analysis → redaction → reasoned order → appeal.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 8(3) creates a twenty-year disclosure rule subject to clauses (a), (c) and (i), with date disputes decided by the Central Government subject to usual appeals.

06

STAGE 06

SEVEN CONTROLLING DECISIONS AND THE NO-RECORD-CREATION BOUNDARY

SEVEN CONTROLLING DECISIONS AND THE NO-RECORD-CREATION BOUNDARY

STATE OF U.P. V. RAJ NARAIN (1975) DEMOCRATIC RIGHT

S.P. GUPTA V. UNION OF INDIA (1981) OPEN GOVERNMENT

CBSE V. ADITYA BANDOPADHYAY (2011) EVALUATED ANSWER BOOKS ARE

CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) COMPLAINT

RBI V. JAYANTILAL N. MISTRY (2015) NO GENERIC FIDUCIARY

SUBHASH CHANDRA AGARWAL (2019)

CJI OFFICE IS A PUBLIC AUTHORITY; PRIVACY AND TRANSPARENCY

State of U.P. v. Raj Narain (1975) democratic right to know public acts.

→

S.P. Gupta v. Union of India (1981) open government and disclosure as democratic norm.

→

CBSE v. Aditya Bandopadhyay (2011) evaluated answer books are information; authority need not create new

→

Chief Information Commissioner v. State of Manipur (2011) complaint is not an automatic substitute for

CONSTITUTIONAL BASIS / ARTICLE

- State of U.P. v. Raj Narain (1975) democratic right to know public acts.
- S.P. Gupta v. Union of India (1981) open government and disclosure as democratic norm.

POWER / PROCEDURE

- CBSE v. Aditya Bandopadhyay (2011) evaluated answer books are information; authority need not create new information.
- Chief Information Commissioner v. State of Manipur (2011) complaint is not an automatic substitute for disclosure appeal.

CHECK / LIMIT

- RBI v. Jayantilal N. Mistry (2015) no generic fiduciary shield for the regulator's inspection information.
- Subhash Chandra Agarwal (2019)

FEDERAL / RIGHTS IMPACT

- CJI office is a public authority; privacy and transparency require balancing.
- Anjali Bhardwaj v. Union of India (2019) appointments must be timely and transparent; stale vacancy counts must be reverfied.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Chief Information Commissioner v. State of Manipur (2011), section 18's complaint jurisdiction does not itself become the section 19 appellate disclosure route.

07

STAGE 07

INSTITUTIONAL COMPARISON, BACKLOG, DIGITAL RTI AND REFORM ARCHITECTURE

INSTITUTIONAL COMPARISON, BACKLOG, DIGITAL RTI AND REFORM ARCHITECTURE

SIC STATUTORY RTI COMPLAINTS AND SECOND APPEALS; DISCLOSURE, COMPLIANCE

COURT CONSTITUTIONAL/STATUTORY JUDICIAL REVIEW; NOT A ROUTINE RTI FIRST-INSTANCE

FAA DEPARTMENTAL ACCESS DECISION AND INTERNAL APPEAL; NEITHER REPLACES

IMPLEMENTATION DEFICITS VACANCIES + BACKLOG + WEAK SECTION 4

REFORM ADVANCE VACANCY CALENDAR

INDEPENDENT STAFF AND BUDGET

INTEROPERABLE E-FILEING WITH OFFLINE ACCESS

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CIC / SIC statutory RTI complaints and second appeals; disclosure, compliance and personal-penalty powers.	IMPLEMENTATION DEFICITS vacancies + backlog + weak section 4 disclosure + record disorder uneven digital access + low	interoperable e-filing with offline access → record digitisation	IMPLEMENTATION DEFICITS vacancies + backlog + weak section 4 disclosure + record disorder uneven digital access + low
COURT constitutional/statutory judicial review; not a routine RTI first-instance forum.	penalty consistency + privacy uncertainty.	section 4 audit → reasoned penalty practice → privacy-redaction guidance.	
PIO / FAA departmental access decision and internal appeal; neither replaces Commission.	REFORM advance vacancy calendar → independent staff and budget	LIMIT technology accelerates routing only when records, accessibility and adjudicatory capacity exist.	

CONSTITUTIONAL BASIS / ARTICLE

- CIC / SIC statutory RTI complaints and second appeals; disclosure, compliance

POWER / PROCEDURE

- IMPLEMENTATION DEFICITS vacancies + backlog + weak section 4 disclosure +

CHECK / LIMIT

- interoperable e-filing with offline access → record digitisation

FEDERAL / RIGHTS IMPACT

- IMPLEMENTATION DEFICITS vacancies + backlog + weak section 4 disclosure +

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Chief Information Commissioner v. State of Manipur (2011), section 18's complaint jurisdiction does not itself become the section 19 appellate disclosure route.

07

STAGE 07 INSTITUTIONAL COMPARISON, BACKLOG, DIGITAL RTI AND REFORM ARCHITECTURE

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CONSTITUTIONAL BASIS / ARTICLE

- CIC / SIC statutory RTI complaints and second appeals; disclosure, compliance and personal-penalty powers.
- COURT constitutional/statutory judicial review; not a routine RTI first-instance forum.
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POWER / PROCEDURE

- IMPLEMENTATION DEFICITS vacancies + backlog + weak section 4 disclosure + record disorder uneven digital access + low
- penalty consistency + privacy uncertainty.
- REFORM advance vacancy calendar → independent staff and budget

CHECK / LIMIT

- interoperable e-filing with offline access → record digitisation
- section 4 audit → reasoned penalty practice → privacy-redaction guidance.
- LIMIT technology accelerates routing only when records, accessibility and adjudicatory capacity exist.

FEDERAL / RIGHTS IMPACT

- IMPLEMENTATION DEFICITS vacancies + backlog + weak section 4 disclosure + record disorder uneven digital access + low

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Information Commissions issue binding RTI appellate decisions and personal PIO penalties, unlike Human Rights Commissions whose ordinary outputs are principally recommendations and reports.

08

STAGE 08 CURRENT-LAW CAVEATS, PYQ ROUTE, TRAPS AND TRANSPARENCY SYNTHESIS

CURRENT-LAW CAVEATS, PYQ ROUTE, TRAPS AND TRANSPARENCY SYNTHESIS

DATED CONTROL

24 AUGUST 2026

DPDP SECTION 44(3) SUBSTITUTED SECTION 8(1)(J) FROM 13 NOVEMBER

SECTION 8(2) REMAINS; NO UNVERIFIED STAY OR FINAL CONSTITUTIONAL

PYQ ROUTE

2020 GS-II

2019 AMENDMENT AND AUTONOMY OF INFORMATION COMMISSIONS.



CONSTITUTIONAL BASIS / ARTICLE

- DATED CONTROL: 24 AUGUST 2026
- DPDP section 44(3) substituted section 8(1)(j) from 13 November 2025.
- Section 8(2) remains; no unverified stay or final constitutional outcome is asserted.
- PYQ ROUTE

POWER / PROCEDURE

- 2020 GS-II → 2019 amendment and autonomy of Information Commissions.
- PRELIMS FIREWALL statutory != constitutional court
- complaint != second appeal binding order != no judicial review
- PIO penalty != ministry fine third-party procedure != exemption

CHECK / LIMIT

- section 24 != absolute exclusion
- RTI record != new explanation.
- MAINS SPINE right-to-know root → access chain → independent commission design
- inquiry and appeal powers → exemptions and privacy

FEDERAL / RIGHTS IMPACT

- implementation deficit → transparent appointments, records and reasoned balancing.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PIOs and APIOs structure access to records, including assistance for oral requests, so inability to write cannot defeat the statutory right.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

PART A — CENTRAL INFORMATION COMMISSION (CIC)

PART B — STATE INFORMATION COMMISSION (SIC)

3 YEARS UNDER THE RTI RULES, 2019 , SUBJECT

REMOVED BY THE PRESIDENT ; FOR PROVED MISBEHAVIOUR/INCAPACITY

CIC/SIC ARE CONSTITUTIONAL BODIES

STATUTORY (RTI ACT 2005).

CIC'S TERM REMAINS 5 YEARS

OPTIONAL DOCTRINE / CASE

- PART A — CENTRAL INFORMATION COMMISSION (CIC)
- PART B — STATE INFORMATION COMMISSION (SIC)
- Term = 3 years under the RTI Rules, 2019 , subject to the statutory maximum age of 65 .
- Removed by the President ; for proved misbehaviour/incapacity , a Supreme Court inquiry is required.

ADVANCED LIMIT

- NOT: CIC/SIC are constitutional bodies → statutory (RTI Act 2005).
- NOT: CIC's term remains 5 years → after the 2019 Amendment , Central rules prescribe
- NOT: CIC salary equals the Election Commissioners' → that parity was removed by the 2019 Amendment.
- NOT: CIC can have unlimited Information Commissioners → max 10 (+ the Chief).

COMPARATIVE NUANCE

- NOT: SIC members are removed by the President → removed by the Governor (contrast SHRC = President).
- NOT: CIC/IC are eligible for re-appointment → not eligible .
- NOT: The Leader of Opposition is not on the CIC panel → the LoP (LS) is on the 3-member selection committee.
- RTI (Amendment) Act, 2019 — Centre controls tenure/salary → the independence debate.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.